

IN THE SUPREME COURT OF BANGLADESH  
HIGH COURT DIVISION  
(CRIMINAL REVISIONAL JURISDICTION)

**Present:**  
**Mr. Justice Mamnoon Rahman**

**Criminal Revision No. 419 of 2019**

Lutfur Rahman

.....Convict-Appellant-Petitioner.

**-VERSUS-**

The State

..... Opposite Party.

Mr. Md. Mahbubur Rahman Kishore, Adv. with  
Mr. Md. Nurul Huda, Adv.

..... For the Petitioner

Mr. Mohammad Taifoor Kabir, DAG with  
Mr. Md. Lokman Hossain, AAG  
Mr. Md. Hatem Ali, AAG

..... For the Opposite Party.

**Heard on : 11.10.2023**

**And**

**Judgment on: The 12<sup>th</sup> October, 2023**

Rule was issued calling upon the opposite party to show cause as to why the judgment and order dated 11.10.218 passed by the learned Sessions Judge, Lakshmipur in Criminal Appeal No. 17 of 2017 dismissing the appeal and modifying the judgment and order of conviction and sentence dated 10.01.2017 of G.R. No. 936 of 2008 arising out of Lakshmipur Police Station Case No. 7 dated 04.09.2008 convicting the accused petitioner under Section 324 of the Penal Code and sentence to suffer rigorous imprisonment for two years and thereby commuting the conviction and sentence to one

year, should not be set aside and/or pass such other or further order or orders as to this court may seem fit and proper.

The short facts relevant for the disposal of this rule, is that, the opposite party as complainant filed First Information Report (FIR) with Lakshmipur Police Station Case No. 7(9) of 2008 under section 143/323/324/506 of the Penal Code against several persons including the petitioner alleging *inter alia* that the accused petitioner are men of opposite side of the same home and they had been humiliating and torturing variously upon the informant for a long period for driving out from his homeland and consequently on the petitioner along with other accused of the instant case made a fence on the land of the informant and thereafter the informant informed the matter to the local people and the petitioner along with other accused of the instant case grew angry with the informant and uttered various flimsy language and then the informant protested against the said behavior and hence the petitioner along with other accused of the instant case and all on a sudden they attacked and variously beat the informant with deadly weapons and as such the informant was injured and got admission into Lakshmipur Sadar Hospital and hence the case. After filling of the case the police started investigation and submitted charge sheet implicating the petitioner wherein the police in the police report, however, not sent up the F.I.R. named accused Sarmin Akter in the charge sheet and recommended for discharging her from the case. During trial the prosecution adduced as many as

five witnesses and the defence adduced none. The court below proceeded with the trial and examined the petitioner under section 342 of the Code of Criminal Procedure. Thereafter, the trial court after hearing the parties and considering the facts and circumstances passed the impugned judgment and order of conviction and sentence convicted the petitioner under section 324 of the Penal Code and acquitted the other accused persons.

Being aggrieved by and dissatisfied with the aforesaid judgment and order passed by the trial court the petitioner moved before the learned Sessions Judge, Lakshmipur by way of appeal and the same was heard and disposed of by the said Judge who vide the impugned judgment and order dismissed the appeal by modification of the sentence.

Mr. Md. Mahbubur Rahman Kishore, the learned counsel appearing on behalf of the petitioner submits that the court below without applying their judicial mind and without considering the facts and circumstances, most illegally and in an arbitrary manner passed the impugned judgment and order of conviction and sentence which requires interference by this court. He submits that in the present case in hand the prosecution miserably failed to prove the place, manner and time of occurrence as much as all the witnesses are highly interested witnesses and there is no single independent witness to corroborate the offence as alleged. The learned counsel

prays for setting aside the judgment and order of conviction and sentence passed by the courts below.

Ms. Taifoor Kabir, the learned Deputy Attorney General appearing on behalf of the opposite party/state vehemently opposes the rule. He submits that the court below on proper appreciation of the facts and circumstances, evidence both oral and documentary as well as the relevant provisions of law passed the impugned judgment and order of conviction and sentence which requires no interference by this court.

I have perused the impugner and judgment and order of conviction and sentence passed by the trial court as well as lower appellate court, revisional application, grounds taken thereon, LC Records and heard the learned counsel for the contesting parties.

On perusal of the same, it transpires that the petitioner along with others stood charge for an offence under section 324 of the Penal Code for causing grievous hurt on the victim and also assaulting the other inmates of the house. It further transpires that after the occurrence the informant lodged the First Information Report (FIR) resulting which the police started investigation and after investigation submitted charge sheet implicating the petitioner and others as accused persons. During trial the prosecution adduced five witnesses including the informant as well as the doctor who examined the witnesses. The trial court also examined the accused persons under section 342 of the Code of Criminal Procedure.

Thereafter, the trial court convicted and sentenced the petitioner and acquitted the rest others. It further transpires that on appeal the lower appellate court affirmed the judgment and order passed by the trial court but modified the sentence considering the age of the petitioner.

On perusal of the same, it transpires that the P.W. 1 in her deposition categorically stated that out of certain family disputes the accused persons by forming an unlawful assembly entered into the house of the informant and others and assaulted them with different weapons. It further appears from the testimony of P.W. 1 that the petitioner gave a blow on her head causing grievous hurt. It also appears that P.Ws. 2, 3 and 5 also supported the deposition made by the P.W. 1

On perusal of the testimony of the doctor who examined the P.W. 1 as well as the victim, it transpires that the injury as determined by the said doctor has been corroborated with the testimony of P.Ws. 1, 2, 3 and 5. It transpires that though it has been argued that the place of occurrence or time has not been duly proved but the extenuating circumstances clearly show the implication of the petitioner in the case in hand. However, considering the facts and circumstances, I am of the view that justice would be done if the sentence be modified and the petitioner be sentenced to suffer the period undergone.

Accordingly, the instant rule is discharged and the sentenced is modified for the period undergone. The petitioner is discharged from the bail bond.

Send down the L.C. Records to the concerned court below with a copy of the judgment at once.

(Mamnoon Rahman, J:)